

25LBCV00532 25LBCV00532

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-09

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Case Number: 25LBCV00532 Hearing Date: July 9, 2026 Dept: S27

Plaintiff, Evelyn Munoz filed this action against Defendants, Ford Motor Co. and Caruso Ford Lincoln for damages arising out of violations of Song-Beverly and fraudulent concealment.

Ford Motor Company moves for summary judgment on Plaintiff's complaint. Plaintiff failed to timely file opposition papers.

Recently, in *Mandell-Brown v. Novo Nordisk Inc.* (2025) 109 Cal.App.5th 478, 508, the Court of Appeals considered a situation where a plaintiff failed to file an opposing separate statement prior to the hearing on the defendant's motion. The Mandell-Brown Court noted, "Thus, if a plaintiff opposing summary judgment fails to file a separate statement, and the trial court reviews the moving papers and concludes the motion is not deficient on its face, it has discretion under subdivision (b)(3) to grant the motion, without first undertaking a detailed analysis of the supporting evidence to determine if a prima facie showing has been made as to one or more of the elements of each claim."

The Court has reviewed the moving papers and finds they are not deficient on their face. In light of the lack of opposition and an opposing separate statement, the Court grants the motion.

Defendant is ordered to give notice.